

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, June 20, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28001 against Sergeant Matthew Fried, Tax Registry No. 934884. The case was conferenced on June 11, 2024, before Assistant Deputy Commissioner of Trials Anne Stone who approved the negotiated penalty of a Schedule A Command Discipline with a forfeiture of FIVE (5) vacation days for DADS No. 2023-28001 after an acceptance by Sergeant Fried of the findings of substantiation of the allegations contained in the Charges and Specifications. The Charges and Specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28001
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, FRIED	FIRST MATTHEW	M.I. D	COMMAND EMERGENCY SERVICE SQUAD 05
SHIELD NO. 1790	TAX REGISTRY NO. 934884	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2004	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Matthew FRIED, on or about January 2, 2022, at approximately 0008, while assigned to ESS 06 and on duty, in the vicinity of § 87(2)(b) Kings County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that Sgt. FRIED spoke discourteously to § 87(2)(b) by calling § 87(2)(b) a "crackhead", without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Sergeant Matthew FRIED, on or about January 2, 2022, at approximately 0008, while assigned to ESS 06 and on duty, in the vicinity of § 87(2)(b) Kings County, wrongfully used force, in that Sgt. FRIED used physical force against § 87(2)(b) by pushing him without police necessity.	DISMISSED	

DC Barrie 6/21/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caban 6/28/24
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, June 21, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28001 (CCRB Case #202200238) against Sergeant Matthew Fried, Tax #934884, with the recommendation that the Charges and Specifications against Sergeant Fried be dismissed and that Sergeant Fried receive a Schedule "A" Command Discipline and forfeit five (5) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER



TIK/pk

APPROVED



JUN 21 2024
EDWARD A. CABAN
POLICE COMMISSIONER